

HOUSE No. 2664**The Commonwealth of Massachusetts**

PRESENTED BY:

John J. Mahoney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a board of hoisting machinery regulations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Mahoney</i>	<i>13th Worcester</i>	<i>1/14/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/6/2025</i>
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>2/6/2025</i>
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>2/6/2025</i>
<i>Alan Silvia</i>	<i>7th Bristol</i>	<i>2/6/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>2/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>2/20/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>2/20/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/4/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/10/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/10/2025</i>
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>3/10/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>3/10/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/13/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/18/2025</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>3/24/2025</i>

<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/24/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>4/1/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>4/2/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>4/9/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>5/28/2025</i>
<i>David Biele</i>	<i>4th Suffolk</i>	<i>5/30/2025</i>
<i>Dawne Shand</i>	<i>1st Essex</i>	<i>5/30/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/30/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>5/30/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>6/4/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>6/5/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>6/12/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>6/16/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>7/1/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>10/9/2025</i>

HOUSE No. 2664

By Representative Mahoney of Worcester, a petition (accompanied by bill, House, No. 2664) of John J. Mahoney and others relative to establishing a board of hoisting machinery regulations. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a board of hoisting machinery regulations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 146 of the General Laws is hereby amended by striking out section
2 53A, as appearing in the 2022 Official Edition, and inserting in place thereof the following
3 section:-

4 Section 53A. There shall be in the department a board to be known as the board of
5 hoisting machinery regulations, which shall consist of six members to be appointed by the
6 governor, with the advice and consent of the council, for terms of four years each. One such
7 member shall be the chief inspector in said department, who shall serve as chair and act as a
8 nonvoting member of said board, except in the case of a tie vote, one shall be a an employee of a
9 public utility who is actively engaged in hoisting machinery operations in the Commonwealth,
10 one shall be a member from a private construction contractor who is actively engaged in hoisting
11 machinery operations in the Commonwealth, one shall be a safety trainer who is authorized by
12 the department to do continuing education classes for hoisting licenses in Massachusetts, one

13 shall be an expert in the Occupational Safety and Health Administration who is actively involved
14 in hoisting machinery related operations, and one shall be from the International Union of
15 Operating engineers Local with jurisdictions in Massachusetts who has been actively engaged in
16 hoisting machinery related operations in the commonwealth for not less than five years
17 immediately preceding appointment.

18 Said board shall promulgate rules and regulations, pursuant to chapter 30A, embodying
19 the classifications of hoisting machinery and establishing criteria and procedures for the
20 issuance, denial, renewal, suspension and revocation of licenses of apprentice operators of such
21 machinery. However, a final adjudication that there has been a violation of federal or state
22 occupational safety and health regulations, or any rule or regulation adopted by the department,
23 shall be cause for the denial, revocation or suspension of any license issued under this section.
24 Criteria for issuance of such licenses shall include, but not be limited to, training and experience
25 requirements appropriate to the categories of machinery for which the license is intended, and
26 registration with the apprenticeship council within the department of labor standards. A holder of
27 such apprentice license may operate hoisting machinery only under the guidance and supervision
28 of a holder of a license to operate for the category of hoisting machinery to be operated by the
29 apprentice.

30 A majority of said board, constituted as above provided, may transact business, but a
31 lesser number may adjourn from time to time.

32 The board may, subject to appropriation and with the approval of the commissioner,
33 employ an executive secretary who shall not be subject to the provisions of chapter thirty-one
34 and may employ such clerical, technical and other assistants as may be required by said board.